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Representing ☐ Self, without a Lawyer OR ☐ Attorney for ☐ Petitioner OR ☐ Respondent

For Clerk's Use Only

SUPERIOR COURT OF ARIZONA
IN MARICOPA COUNTY

Case No._____

(Name of Petitioner/Party A)

SOLE LEGAL DECISION-MAKING
EDUCATION ORDER

(Name of Respondent/Party B)

THE COURT FINDS AS FOLLOWS:

1. The parties have the following minor child(ren) (hereinafter the "minor child(ren)"):

Name: _____

Born: _____

Name: _____

Born: _____

Name: _____

Born: _____

Name: _____

Born: _____

Name: _____

Born: _____

Name: _____

Born: _____

Name: _____

Born: _____

2. An order regarding legal decision-making and/or parenting time in the best interests of the minor child(ren) (also referred to as a "Parenting Plan") was entered by this Court on (insert date)

_____.

3. A.R.S. § 25-401 defines two different types of legal decision-making. “Joint legal decision-making” means both parties share decision-making and neither party’s rights or responsibilities are superior except with respect to specified decisions as set forth by the court or the parties in the final judgment or order. “Sole legal decision-making” means one party has the legal right and responsibility to make major decisions for a child. In this case, the Court has awarded sole legal decision-making to one party.
4. It furthers the best interests of the minor child(ren) for this Court to enter the following school-specific order that reflects relevant provisions under the Parenting Plan. This order serves to supplement, but not modify or replace, the provisions set forth in the Parenting Plan. If there is a conflict between this order and the current Parenting Plan, the Parenting Plan controls. For purposes of this order, the terms apply equally to schools, pre-schools, and institutional childcare providers.
5. This order is binding upon the parties, who are responsible for complying with its terms and the terms in the Parenting Plan. It is not binding on a school but is provided as guidance for the child(ren)’s schools.

Based thereon,

IT IS HEREBY ORDERED AS FOLLOWS:

1. Delivery to School.

The parties are required to provide a copy of this order to the minor child(ren)’s school(s).

2. Sole Legal Decision-making.

Sole legal decision-making authority has been awarded to (indicate which party has sole legal decision-making): ☐ Petitioner/Party A ☐ Respondent/Party B

As it relates to this Education Order, legal decisions include school selection, enrollment/withdrawal, and special services (IEP/504 Plans).

3. School Selection.

Only the party with sole legal decision-making authority has the authority to select the minor child(ren)’s school. However, enrollment of the minor child(ren) in a particular school is subject to the school’s policies or rules, space availability, enrollment restrictions set by the school or school district or its authorizer (if a charter school), and state law.

4. Special Services.

If the minor child(ren) is/are eligible for or being considered for a 504 Plan, an Individualized Education Program (IEP), an Individualized Service Plan (ISP), or other special services, only the party with sole legal decision-making has the authority to consent to evaluation and/or the child(ren)'s participation in special education and related special services.

Both parties are entitled to attend all meetings with school officials that parents are permitted to attend. Both parties are authorized to have access to all special services records and testing results.

5. Parenting Time and Child Pick-Up.

The school should not use the parenting schedule as a basis to deny either party access to their minor child(ren), nor may either party instruct the school to limit contact, unless otherwise ordered. Each party may pick up the minor child(ren) from school and each may authorize other individuals to pick up the minor child(ren), unless there are limitations under the terms of the current Parenting Plan or other court order.

6. Contact Information.

Each party's home address, e-mail, cell phone and any other contact information must be provided to the school and listed by the school as the contact information for the minor child(ren). Additional emergency contacts may be listed, but in the event of a dispute between the parties, the school must list any person requested by either party until the parties reach an agreement or secure a court order to the contrary. In the event of an emergency, either party may make decisions for the minor child(ren)'s immediate care.

7. Access to School Grounds.

Subject to the policies of the school, or any provisions set forth in the Parenting Plan or other order of the court, there are no restrictions on either party's right to participate in school activities or events, or engage in any parent volunteer activities, that parents are generally permitted to participate in.

8. Access to School Records and Parent Portal.

Both parties are entitled to equal access to the minor child(ren)'s school records. Neither party may restrict the other party's access to information. Further, each party is individually responsible for contacting the school and requesting to be included on any mailing or distribution list.

Both parties are entitled to access the school's student information system or online parent portal(s) (e.g., ParentVUE, Google Classroom, Infinite Campus, etc.). Unless the school allows each party to have an individual login account, the parties must create a joint login ID and password, which will not be changed or modified without the consent of the other party.

9. Parent-Teacher Conferences.

Each of the parties has the equal right to confer with teachers and counselors concerning the minor child(ren)'s education and other activities. The parties may request joint or separate parent-teacher conferences, and the school may or may not accommodate the request.

10. Future Litigation.

The parties must make best efforts to agree upon the admission of school records or communications without the need for foundational testimony or agree upon the submission of an affidavit from the custodian of records to authenticate the records in lieu of testimony, whenever possible. If a teacher or school official is required for substantive testimony, the scheduling of such testimony will, when possible, be set at a time that is least disruptive to the school, its other students, and its operations. Presumptively, accommodations will be made to allow virtual appearances by the teacher or school official.

11. Additional Education-Related Orders:

Signed this _____ day of _____ 20 _____.

By: _____

Judicial Officer
Superior Court of Maricopa County